

Dinesh Jetwani vs Smt Jyoti Jetwani on 20 January, 2020

Bench: Sabina, Narendra Singh Dhaddha

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

D.B. Civil Miscellaneous Appeal No.1668/2017

Dinesh Jetwani S/o Late Shri Jairamdas Jetwani, By Caste
Sindhi, R/o Opposite Rajesh Talkiz, Bazar No.3, Ramganjmandi,
District Kota.

----Appellant

Versus

Smt. Jyoti Jetwani W/o Dinesh Jetwani D/o Nandlal Bhagwani, By
Caste Sindhi, R/o 61, Shopping Center, Kota.

----Respondent

For Appellant(s)	:	Smt. Archana Mantri
For Respondent(s)	:	Shri Manish Kumar Saini on behalf of Dr. Mahesh Sharma

HON'BLE MRS. JUSTICE SABINA
HON'BLE MR. JUSTICE NARENDRA SINGH DHADDHA

Order

20/01/2020

BY THE COURT : (PER HON'BLE DHADDHA,J.)

This appeal has been preferred by appellant Dinesh Jethwani against the order of the learned Family Court No.2, Kota (Raj.) passed on 20.01.2017 whereby the learned Family Court rejected the Hindu Matrimonial Case No.122/2016 filed u/s 13 of the Hindu Marriage Act, 1955 (for short "the Act").

Brief facts giving rise to this appeal are that the marriage of the appellant was solemnized with respondent on 21.11.1996 as per Hindu rites and customs at Porwala Dharmshala Ramganjmandi, District Kota. The respondent wife changed her behaviour after one year and used to quarrel with the appellant on petty matters. She used to go to her parental house without any information and did not inform her husband even after 2-3 days. She used to spend all her day lying on bed. Due (2 of 5) [CMA-1668/2017] to this, the appellant remained under stress. As the children were growing up, the demands of the respondent and her stubborn behaviour, started increasing and also she learnt black magic from her mother and used it on the appellant as well as children. Some times, the respondent also used to beat the appellant very cruelly. The respondent also used to pressurize the appellant that if he would not surrender the documents of the house situated in Balaji Nagar, Kota,

she would leave the appellant's house and would go to her parental house. On 26.05.2012, the respondent, in the absence of the appellant and without his permission, left the house and went to her parental house along with the children. The respondent had deprived the appellant of marital happiness. In spite of all this, the appellant had gone to the respondent's parental house to bring her back but the respondent had clearly declined to accompany him. The respondent insulted the appellant physically as well as mentally by filing false case against him. Therefore, the appellant's application be accepted and decree for dissolution of marriage be passed.

In reply, the respondent had denied the allegations levelled by the appellant and stated that the respondent never went to her parental house of her own will. The appellant demanded dowry and tortured the respondent both mentally and physically and threw the respondent and the kids out of the house. The appellant always looked at the respondent with doubt. The appellant was not paying the interim maintenance of Rs.3,000/- that was decided by the Family Court. In spite of the appellant's daughter suffering from a disease in her neck, the appellant did not get her treated and used to beat her. The respondent had never denied from staying with the appellant but (3 of 5) [CMA-1668/2017] the appellant himself never came to take the respondent and the children. The appellant, on account of his ill behaviour and evil intention wanted to leave the respondent, which was not justified. Therefore, on the basis of aforementioned reasons, the application was required to be dismissed.

From the pleadings, the learned Family Court framed issues :

"(1) Whether the behaviour of respondent wife with appellant was cruel ?

(2) Whether the respondent - wife had without any reasonable cause, deserted the petitioner husband continuously for more than two years ? (3) Whether the appellant was entitled to get decree of divorce from the respondent? (3) Relief ?"

The appellant examined himself as AW-1, Madan Lal - AW-2 and Rajendra Kumar as AW-3 and exhibited 5 documents in his support.

The respondent examined herself as NAW-1, Sambhawana - NAW-2 and Nandlal - NAW-3 and exhibited 8 documents in her support.

After hearing the learned counsel for the parties, the learned Family Court decided all the Issues in favour of the respondent and against the appellant and rejected the divorce petition filed by the appellant husband.

Learned counsel for the appellant submitted that the impugned judgment and decree dated 20.01.2017 are ex-facie illegal, arbitrary and bad in the eye of law. She submitted that the learned Family Court had committed an error in not considering the fact that after marriage, initially for 15

years, both of them (4 of 5) [CMA-1668/2017] had been enjoying and obeying their matrimonial obligations. She submitted that in case the appellant husband was cruel, the respondent wife would have left the matrimonial house.

Learned counsel for the appellant further submitted that the respondent wife had become cruel towards the appellant as it was clear from the FIR which was lodged by the respondent wife for offence punishable u/s 498-A and 406 IPC and after investigation, police submitted final negative report. She submitted that the learned Family Court had not considered the fact that the appellant was fulfilling his duties / obligations towards his wife and children. She submitted that the appellant had imparted good education to his children by admitting them in a reputed school of Kota by paying necessary fees.

Learned counsel for the appellant further submitted that the learned Family Court had committed an error in not considering the fact that daughter of the appellant was suffering from neck disease as she was examined by the specialist of the Kota and all expenses were incurred by the appellant. Therefore the appeal be allowed and marriage of the parties be dissolved.

Learned counsel for the respondent submitted that the learned Family Court had passed the order in its right perspective and had not committed any error. Therefore, the appeal be dismissed.

We have given our thoughtful consideration to the arguments advanced by both the parties and perused the impugned order and the material available on record.

Learned trial court while deciding the issue regarding cruelty against the appellant observed that the appellant husband had not uttered single word in this regard while appearing in the (5 of 5) [CMA-1668/2017] witness box. The appellant in his statement stated that behaviour of his wife towards him, was good. Witnesses - Madan Lal and Rajendra, in their statement stated that the relations between the parties were cordial. The respondent in her statement clearly stated that the appellant used to beat her after consuming liquor. He had tried to burn her. He also used to bully his children. Appellant's daughter Sambhawna in her statement clearly stated that the appellant used to beat her mother after consuming liquor. Respondent's father Nandlal also stated that his daughter was beaten by the appellant and he had not taken care of his daughter.

Learned trial Court in its order clearly observed that the appellant tried to burn the respondent and he did not want the children to study and he had thrown out respondent from his house and after that, she was residing separately. Therefore, the learned trial court had not committed any error in deciding both the issues against the appellant.

41 We are of the considered opinion that the learned Family Court had not committed any error in dismissing the divorce petition filed by the appellant. Therefore, we are persuaded to reject the appeal and accordingly, it is dismissed.

(NARENDRA SINGH DHADDHA), J

RAJ KUMAR CHAUHAN /17/M47

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